

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN MONGOLIA

Complete Community Opposition How-To

This guide uses the Mongolian terms and bodies you'll actually run into — the environmental impact assessment, the soum and bagh, the Law with the Long Name, the courts, and the international-lender accountability mechanisms — and explains each in plain words the first time. This is a country where herders have written national law with their own hands.

INTRODUCTION & FRAMEWORK

Hold onto one fact before anything else: **ordinary herders in Mongolia have written national law with their own hands, and made the Supreme Court order the government to obey it.**

That is the record of the river movements. When gold and other mining began drying up whole river systems — the **Ongi River**, once more than four hundred kilometres long, shrank drastically and the lake it fed dried out — herders and citizens organised the **Ongi River Movement**, founded in 2001 under the herder-leader **Tsetsegee Munkhbayar**, and later the broader **United Movement of Mongolian Rivers and Lakes**. They did not merely protest. They drafted a law with their own volunteer lawyers and academics; they camped outside Parliament and, when it stalled, held a **hunger strike**; and on **16 July 2009 they forced the adoption of the law Mongolians call the Law with the Long Name** — the Law to Prohibit Mineral Exploration and Mining Operations at the Headwaters of Rivers, Protected Zones of Water Reservoirs, and Forested Areas. When the government failed to enforce it, they went to court, and in **2011 the Supreme Court ordered the government to enforce it**. Munkhbayar had already won the Goldman Environmental Prize in 2007. That is real power, and it is Mongolian.

The river movements teach the pattern, and Mongolia's levers are real even though mining dominates the economy, the pressure on land and water is intense, and consent is often absent. An **environmental impact assessment** system governs projects. The **Law with the Long Name** shields the headwaters of rivers, water reservoirs, and forests from mining. The **courts** can compel enforcement, as the Supreme Court did in 2011. The **soum and bagh** structures of local governance, and a deep tradition of herder mobilisation, give communities a base, and organising is generally lawful. And for the big foreign-financed mines, the **accountability mechanisms of international lenders** can be petitioned. But these tools have real limits, and this guide states them plainly, for writing the law and winning the order did not, by itself, protect the rivers. The Law with the Long Name — meant to shield up to roughly a quarter of Mongolia's ecosystems — has been chronically under-enforced; mining continued in protected zones; the mining ministry and industry pushed repeatedly to weaken it through amendments; and in 2013, when activists staged a desperate armed protest against those amendments, several were arrested and prosecuted on grave charges. In 2019 the movements went back to court over the government's failure to implement the law. Mongolia shows both what a determined community can achieve — a national law, a court order, real cost to companies — and how hard it is to turn a paper victory into protection on the ground when the state and the mining industry push the other way.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals and dependencies, and a chain breaks at its weakest link. A large Mongolian project needs its **EIA** approved; where it's at a river headwater, in a water-reservoir zone, or in forest, it runs into the **Law with the Long Name**; it can be challenged in the **courts**; where it's on herders' pasture, it engages local **soum/bagh** governance and herders' rights; and where it's financed by an **international lender**, it engages that lender's accountability mechanism. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If it's at a river headwater, in a water-reservoir zone, or in forest, the Law with the Long Name prohibits mining there** — a real, if under-enforced, legal wall you can go to court to make the state uphold.
- **If a foreign lender (like the IFC or the EBRD) finances it, that lender's accountability mechanism is a distinctive lever** — Gobi herders have used it to win agreements on water and pasture.
- **If the EIA was skipped or defective, that's a genuine ground.**
- **But a paper win must be enforced** — the Law with the Long Name shows a law and a court order are the start, not the end, so plan for the long fight to make it real.

Read the whole guide once before you move. Two habits run through it: **use the levers the law and Mongolia's own herder history give you** — the EIA, the Law with the Long Name, the courts, the soum/bagh, the lender mechanisms — and **combine the strands**: the documents, the participation, the courts, the movement, the press. That combination wrote a national law.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core environmental gate is the **EIA**, under the environment ministry and its process. Mining licences come from the minerals authority. Crucially, the **Law with the Long Name** prohibits mining at **river headwaters, in water-reservoir protected zones, and in forested areas** — a legal boundary over the licensing. Local governance runs through the **aimag (province), soum (district), and bagh** — and the **Citizens' Representatives Khurals** and herder communities have real, if uneven, roles. And the **courts** review the legality of decisions. Know which decision you can reach, and aim there.

How a Project Moves — and Where You Jump In

The licence and the EIA. A licence is granted and an EIA prepared and approved, often far away and without the herders who graze the land. *Your opening — and it arms every later step:* get the EIA and the licence, take part where you can, and put your objections on the record.

The Law with the Long Name boundary. *Your opening — potentially decisive:* if the project is at a river headwater, in a water-reservoir zone, or in forest, it is **prohibited** — and you can go to court to make the state uphold the ban.

The local governance. *Your opening:* the soum and bagh and the Citizens' Khural can resist, refuse cooperation, and voice the herders' opposition.

Construction and operation. *Your opening:* breaches, the courts, and — for foreign-financed mines — the lender's accountability mechanism.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records, and whether a **foreign parent or an international lender** is involved (which opens the accountability mechanisms). **What it still needs** — the EIA not approved, the licence not final, financing not closed: whatever's missing is the soft spot. **Who's financing it** — and especially whether the **IFC (World Bank Group)**, the **EBRD**, or a similar lender is involved, each with its own grievance mechanism.

Who's Supposed to Be Watching

Each is an ally or an arena. The **environment ministry** runs the EIA; the **minerals authority** the licence. The **courts** enforce the law — including, when pressed, the Law with the Long Name. The **soum and bagh** and the **Citizens' Representatives Khurals** are the local governance. The **National Human Rights Commission** takes rights complaints. And for foreign-financed mines, the **CAO** (the accountability mechanism for IFC/World Bank-backed projects) and the **EBRD's mechanism** hear affected communities' complaints. And Mongolia's **herder movements**, **its river-and-lake networks**, and **its press** are the forces that reach furthest — the combination that wrote the Law with the Long Name.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the Law with the Long Name applies, whether a foreign lender is involved, whether the EIA was skipped, and how organised the herders are.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Objections in the EIA	15–35%	during review	low	On record; conditions or a redo
Law with the Long Name (headwater/forest)	25–50%	months–yr	low	Mining prohibited; court ordered to enforce
Court challenge (defective EIA / illegal inaction)	25–50%	1–3 yr	low–mod	Decision set aside; state ordered to act
Soum/bagh / Citizens' Khural resistance	20–45%	months–yr	low	Local cooperation withheld
International-lender accountability (CAO/EBRD)	25–50%	1–3 yr	low	Agreements on water, pasture, compensation
Herder mobilisation + national movement	30–55%	months–yr	low	Law changed; pressure; cost (the river movements)
Everything together (protected zone / lender, public roused)	35–60%	1–4 yr	low–mod	Prohibited, ordered enforced, agreed, delayed

What you do	Roughly works	How long	Cost	What "works" means
Everything together (state+industry push back)	15–40%	years	low–mod	Delayed, exposed — a paper win to defend

The levers that move the needle most are the **Law with the Long Name** (where it applies), the **international-lender accountability mechanisms** (for foreign-financed mines), and **herder mobilisation**, backed by the courts. The river movements show the ceiling (a national law, a Supreme Court order) and the honest limit (chronic under-enforcement). So aim to win *and* enforce, and count a prohibition upheld, a lender agreement, a court order, delay, and cost as wins.

On cost: documenting, organising through soum/bagh structures, and lodging complaints are low-cost; volunteer lawyers and national river networks bring the bigger cases; and the international-lender mechanisms are free to affected communities.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this licence, this protected zone, this lender — is strong. Answer five questions in writing.

1. What is it, and who's behind it — and who finances it? Name the project, the company, its owners, and crucially any **foreign parent or international lender** (which opens the accountability mechanisms).

2. Where is it, and what does it touch? Get the footprint and lay it over **river headwaters, water-reservoir zones, forest** (the Law with the Long Name), springs, winter pasture, a sacred ovoo or mountain, the thin water of the Gobi. **A river headwater, water zone, or forest is your sharpest legal lever**, so establish this first.

3. What stage is it at, and what's the next deadline? Is the EIA in review? Has the licence issued (opening a court challenge)? These openings are time-bound.

4. What does it still need that it lacks? An EIA not approved, a licence not final, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbouring herders, the soum and bagh, the Citizens' Khural, the national river-and-lake movements. The river movements united herders across the country.

What this looks like in real life. Herders find a mining licence has been issued over their winter pasture near a river's headwaters, the EIA approved far away, financed by an international lender. The five questions yield: a company and a foreign lender behind it; a site at a river headwater (the Law with the Long Name) on herders' pasture; an EIA approved without them; a project still needing final steps; and a coalition of herders and river movements. That's the river-movement pattern — invoke the Law with the Long Name, engage the lender's mechanism, and mobilise.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decisions rest on — the EIA, the licence and its area, the water and pasture studies, and the financing. Use access channels to demand what isn't public. Then read

them hard for flaws — an understated impact on water or pasture, a licence that overlaps a **river headwater, water zone, or forest** (a prohibition under the Law with the Long Name), an EIA that ignored the herders.

Layer two: the ground truth. Dated, located photographs and video of the site, the river, the springs, the pasture — baseline images before any damage most of all — and the testimony of affected herders. Herders' own observation of a drying river or spring is powerful evidence.

Layer three: the map of protected zones and pasture. Lay the licence over the river headwaters, water-reservoir zones, forest, springs, and winter pasture, so each lever — above all the Law with the Long Name boundary — is visible. Walking into court or a lender's mechanism with the EIA, the licence, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA, the licence and its area, the water and pasture studies, the financing** — from the environment ministry, the minerals authority, and financing records; force out the rest via access channels (8A).
- **The protected-zone overlay** — whether the licence hits a river headwater, water zone, or forest.
- **The lender** — whether the IFC, EBRD, or similar finances it, to open the accountability mechanism.
- **The protected-zone-and-pasture map** — headwaters, water zones, forest, springs, and pasture, laid over the licence.
- **Dated site evidence and herders' testimony** — photographs marked with date and place, and observations of drying water.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Mongolia's herders wrote a national law by organising. Build your coalition in four moves.

Start with a tight core. The herders most affected, the people who know the river and pasture, a few tireless organisers, and respected local and traditional figures.

Work through the soum and bagh. The soum and bagh structures and the **Citizens' Representatives Khural** are the legitimate local channels for the community's voice — and can withhold cooperation. Center them, and take the herders' collective opposition to them.

Reach the national river movements. The **United Movement of Mongolian Rivers and Lakes** and its networks bring the experience, the lawyers, and the reach that wrote the Law with the Long Name. Link up early.

Bring in the lawyers and, for foreign-financed mines, the international networks — early. Volunteer and public-interest lawyers who run the court cases, and the international accountability networks that help herders bring **CAO** or **EBRD** complaints. Keep mobilisation disciplined and lawful — the 2013 arrests are a warning.

Build to last. Mongolian fights run for years, and a paper win must be enforced. Build clear roles, a shared archive, a way to decide together, and a plan for the toll — and for the long work of turning a law or an order into protection on the ground.

STEP 4: LEGAL CHALLENGES, THE LAW & LENDER ACCOUNTABILITY

Law is a real Mongolian lever — herders wrote some of it — but a paper win must be enforced, and the lender mechanisms add a distinctive route.

Participate First — It Builds the Record

Everything downstream is stronger if you took part in the EIA and put your objections on the record. The courts weigh that record.

The Law with the Long Name — the Distinctive Wall

Mongolia's signature lever is the **Law with the Long Name**: mining is **prohibited at river headwaters, in water-reservoir protected zones, and in forested areas** — up to roughly a quarter of the country's ecosystems. If your project sits in a protected zone, it is unlawful, and — as the river movements did — you can go to **court to make the state uphold the ban** (the Supreme Court ordered enforcement in 2011). Be honest that the law is chronically under-enforced, so this is a fight to make a real boundary real.

The Courts — Including Against Government Inaction

Beyond the Law with the Long Name, a **defective or skipped EIA** is a ground, and — importantly — you can sue the government for **illegal inaction** in failing to enforce the law, as the movements did in 2019. The courts are your route to set aside a decision or compel the state to act.

International-Lender Accountability — for Foreign-Financed Mines

A distinctive Mongolian lever: many big mines are financed by international lenders, and those lenders have **accountability mechanisms** — the **CAO** (for IFC/World Bank Group-backed projects) and the **EBRD's** mechanism — through which affected herders can bring complaints and, through facilitated dispute resolution, win **agreements on water, pasture, and compensation**. Gobi herders near a major foreign-financed mine have used exactly this route. Where an international lender is involved, this is a powerful, comparatively accessible front.

The Honest Limits

Straight talk: the Law with the Long Name, the courts, and the lender mechanisms are real levers, but a paper win must be enforced, the state and industry push to weaken protections, litigation is slow, and — the 2013 arrests warn — some resistance has been criminalised. So use the strong tools — the EIA, the Law with the Long Name, the courts, the soum/bagh, the lender mechanisms — but pair them with mobilisation and the press, plan for the long enforcement fight, keep it lawful, and count a prohibition upheld, a court order, a lender agreement, delay, and cost as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A protected zone becomes a wall. Not "the mine is bad" but *"this licence overlaps a river headwater — where the Law with the Long Name prohibits mining outright."*

Government inaction becomes a case. *"The state has failed to enforce the law; we ask the court to compel it, as the river movements did."*

A lender becomes a lever. *"This mine is financed by [the IFC / EBRD]; we've brought a complaint to its accountability mechanism over our water and pasture."*

The harm becomes a public story. *"The river and the pasture our families have herded for generations — dried and dug up for a mine we were never asked about."*

Match it to the venue: the objections to the EIA; the protected zone and government inaction to the courts; the financing to the lender's mechanism; the herders' voice to the soum/bagh; the drying river to the press.

STEP 5: MEDIA STRATEGY

In Mongolia, public attention and the herders' moral authority are real levers — the river movements became a national cause. A press and the river-and-lake networks make the media front central.

Lead with the land and water, not procedure. Not "the EIA was defective" but "the river and the pasture our families have herded for generations — dried and dug up for a mine we were never asked about." Use your strongest material: dated photographs of drying rivers and springs, the map of the licence over the protected zone, and herders' voices.

Work several audiences at once. Local and national press build pressure; the river movements amplify; and for foreign-financed mines, international media reach the lenders and their accountability mechanisms. Make it easy: captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And keep mobilisation disciplined and lawful — the 2013 arrests are a warning.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Request for the EIA and licence (to the ministry / minerals authority).

Subject: Request for the EIA and licence — [project].

"We, herders and residents of [soum], request the EIA, the licence and its area, and the water and pasture studies for [project] at [location]. [Contact.]"

8B — Objection in the EIA.

Subject: Objection — EIA for [project].

"We, herders of [soum], object to [project]: [it lies at a river headwater / in a water zone / in forest, where mining is prohibited; it will dry our springs and pasture; the EIA ignored us]. We ask that it be refused. [Attach evidence.]"

8C — Court challenge (to a lawyer).

Subject: Court challenge — [project].

"We instruct you to challenge [project] in court, on the grounds that [it is prohibited under the Law with the Long Name / the EIA was defective / the government has illegally failed to enforce the law]. [Attach the licence, the EIA and our evidence.]"

8D — To the soum/bagh and Citizens' Khural.

Subject: Our opposition to [project].

"We, herders of [bagh], bring our opposition to [project] on our pasture and water to the Citizens' Representatives Khural, and ask that local cooperation be withheld. [Attach evidence.]"

8E — Complaint to an international lender's accountability mechanism.

Subject: Complaint to the [CAO / EBRD mechanism] — [project].

"As herders affected by [project], financed by [the IFC / EBRD], we bring a complaint over its impact on our water, pasture, and livelihoods, and seek dispute resolution and agreements to protect them. [Attach evidence.]"

8F — To the national river movements.

Subject: Request for support — [project] on our river/pasture.

"Our community faces [project] at [a river headwater / on our pasture]. We've gathered [the EIA, the licence, photographs of drying water] and ask for the movements' legal and organising support, as partners. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Herders] move to protect [river / pasture] from [project].

"For generations the herders of [soum] have watered their animals at [the river / spring] at [location]. Now [project] threatens to dry and dig it. We can provide photographs, documents, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can protect our river and pasture — here's how.

"[Project] threatens [our river / pasture]. Mongolian herders wrote the Law with the Long Name and made the Supreme Court enforce it. With that law, the courts, the soum/bagh, the lender's mechanism, and the river movements behind us, we have a real chance — working lawfully and together. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

- 1. Nail down the project, its footprint, and whether it hits a protected zone or is foreign-financed.** A river headwater/forest (the Law with the Long Name) and an international lender are your sharpest levers.
- 2. Object in the EIA (8B), and put your objections on the record.**
- 3. Request the EIA and licence (8A); check the licence against the protected zones.**

4. **Photograph everything, with dates and places** — especially drying rivers and springs.
5. **Go to court on the Law with the Long Name or government inaction (8C), and — if foreign-financed — file a lender complaint (8E).**
6. **Work the soum/bagh, reach the river movements, and go public (8D/8F/8H) — lawfully.** The river movements wrote a national law this way.

Even lean, those six use the strongest levers, build the record, and open the court and lender fronts.

WHEN THE SYSTEM IS TILTED

Mongolia's tools are real, but mining dominates and the field is tilted, so plan for it.

When a paper win isn't enforced. This is the defining tilt: the Law with the Long Name and a court order did not, by themselves, protect the rivers. Plan for the long enforcement fight — return to court for illegal inaction, keep the movement and the press alive.

When the state and industry push to weaken protections. They have amended the Law with the Long Name repeatedly. Defend it politically, and litigate to uphold it.

When it's far from the capital and consent is absent. Licences are often granted without the herders who graze the land. Use the EIA participation, the soum/bagh, and the courts to force the consent that was skipped.

When resistance is criminalised. The 2013 arrests are a warning. Keep mobilisation lawful and disciplined, protect the vulnerable, and route risk through lawyers and the National Human Rights Commission.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Mongolia has documented problems with the capture of mining licences and the weakening of environmental protections, so this matters.

How to spot it. Licences in protected zones; EIAs written for the proponent; the Law with the Long Name amended to suit the industry; licences steered to the connected; benefits to a few while herders carry the harm.

Who's supposed to guard against it. The **Independent Authority Against Corruption** investigates graft. The **National Audit Office** examines public money. The **National Human Rights Commission** takes rights complaints. The **courts** can set aside a tainted licence and compel enforcement. And Mongolia's **press and the river movements** have exposed captured licensing.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the anti-corruption authority, the audit office, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the protected zone and the lender aims it; organising through the soum/bagh builds the muscle; the Law with

the Long Name, the courts, and the lender mechanism press the case; the media raises the cost. Together they multiply. One at a time, they stall — and plan to enforce the win.

Early on (weeks 1–8): nail down the project, its footprint, whether it hits a protected zone, and whether it's foreign-financed; object in the EIA; request the records; photograph the baseline and any drying water; get a lawyer and reach the river movements.

In the thick of it (months–years): go to court on the Law with the Long Name or government inaction; file a lender accountability complaint if foreign-financed; work the soum/bagh; mobilise and open the media front.

The long haul (years): carry the cases through, and — the crucial Mongolian task — fight to enforce a law or an order on the ground; keep the movement alive; hold the line for a prohibition upheld, a court order, a lender agreement, delay, and cost.

FINAL ASSESSMENT

Stopping a destructive project in Mongolia can be done — herders wrote a national law with their own hands and made the Supreme Court order the government to obey it. Hold both truths. Mongolia's tools are real: an EIA; the Law with the Long Name that prohibits mining at river headwaters, in water zones, and in forest; courts that will set aside decisions and compel enforcement; the soum and bagh structures; and — for foreign-financed mines — the international-lender accountability mechanisms that have won herders agreements on water and pasture. And the constraints are real: a mining-dominated economy, chronic under-enforcement, a state and industry pushing to weaken protections, and resistance that has at times been criminalised.

Here's the discipline that wins. Establish whether the project hits a protected zone — the Law with the Long Name — and whether an international lender finances it, and pry loose the record. Object in the EIA, and go to court on the protected-zone prohibition or the government's failure to enforce it. Where a foreign lender is involved, bring a complaint to its accountability mechanism. Work through the soum and bagh, reach the river movements, carry the story of your drying river to the public — and plan for the long fight to make a paper win real. Count a prohibition upheld, a court order, a lender agreement, delay, and cost as wins. That's what the river movements did — the herders, the law they wrote, and the courts together. So can you.